directive principles. Echoing Sinha's and Venugopal's arguments, he noted that the amendment to Article 31C of the Constitution did not damage the basic structure of the Constitution, but strengthened and reinforced it.

As it happened, the erstwhile owners of Minerva Mills continued to contest the nationalization on different grounds, only to ultimately fail at the Supreme Court in September 1986.[28]



The Minerva Mills case undoubtedly set the tone for the future of the basic structure doctrine in India. However, it also brought to light the uncomfortable dynamics among the two most senior judges of the Supreme Court. Justice Bhagwati's complaints about the way in which the case was managed (foreshadowed in his decision from the last day before the vacation) were more fully expressed in his substantive judgement issued after the vacation. Citing Justice Chandrachud's own complaint in the Kesavananda case that there was no opportunity for a 'free and frank exchange of thoughts' among the judges before judgement was handed down, he noted:

> I hoped that after the completion of the argument on questions of such momentous significance, there would be a 'free and frank exchange of thoughts' in a judicial conference either before or after the draft judgment was circulated by my Lord the Chief Justice and I would either be able to share the views of my colleagues or if that was not possible, at least try to persuade them to agree with my point of view. But, I find myself in the same predicament in which the learned Chief Justice found himself [in the Kesavananda case].[29]

Asked about Justice Bhagwati's criticism in an interview after his retirement, Justice Chandrachud admitted that the judges did not have the chance to review one another's draft judgements, but noted that they had several opportunities to exchange views about the case. Other judges on the panel confirmed this.[30]

This was not the only occasion in his judgement that Justice Bhagwati would accuse his colleague of double standards. He cited a passage from Justice Chandrachud's own judgement in the Kesavananda case, emphasizing that fundamental rights and directive principles of state policy